



File No.: EXP202311555

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On August 1, 2023, a complaint was filed with the Spanish Agency for Data Protection regarding a possible infringement attributable to A.A.A. with NIF ***NIF.1 (hereinafter, A.A.A.).

The facts brought to the attention of this authority in the aforementioned complaint were as follows:

The complainant stated that the respondent had installed a surveillance camera at the back of their residence, located at ***DIRECCION.1, next to a window located on the first floor of said residence, which is oriented towards a public pathway, being said pathway the only access route to the complainant's residence. The following documents were provided:

- Document from the Town Hall of Arteixo indicating that the pathway leading from ***CALLE.1 provides access to 4 cadastral parcels and is registered in the General Inventory of Goods and Rights of that Town Hall approved on June 30, 2022. One of those 4 parcels matches the cadastral reference provided by the complainant for their residence, located at ***DIRECCION.2.
- Image of the location of the camera, next to a window on an upper floor of the aforementioned residence.
- Image of the façade of the respondent's residence, with no informational sign regarding the existence of the disputed camera.
- Image extracted from Google, identifying the installed camera, the public pathway, and the only entrance to the respondent's residence at the back. This image also does not contain an informational sign regarding the existence of said camera.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), on August 31, 2023, the aforementioned complaint was forwarded to A.A.A., for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was notified on September 6, 2023, as recorded in the acknowledgment of receipt in the file.

On September 22, 2023, a response was received by this Agency, submitted by the legal representative of the respondent, indicating that the aforementioned camera is located on the main façade of their residence and that the field of vision of said camera is limited to their private property, providing the following documents:

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- Simple informative note from the property registry dated September 11, 2023, regarding the property of the responding party. This simple note indicates that it borders to the south with a road and a wall that encloses it; to the north with another road; to the east with a house owned by a third party; and to the west with a threshing floor and property of another third party. The cadastral reference of this property matches one of the four indicated in the supporting document from the Town Hall of Arteijo, provided by the claiming party.
- Image of part of the façade of the property of the responding party, where a door is located, indicating that it is the only access entrance to the property, and where an informative data protection sign has been placed. It is also indicated that this area does not constitute a public road, referring to an image

extracted from Google, as the mentioned house (identified as A) and the adjoining property (identified as B) are owned by the responding party.

- Image extracted from Google, in which properties A and B are identified, but also other adjoining properties and access to properties located at the back. This image is the same as that provided by the claiming party, with no informative sign regarding the existence of the disputed camera being observed.

- Image of the camera and its field of vision, dated September 11, 2023, indicating that it is limited to a small fraction of its private property, where vehicles that are also owned by it are parked. Thus, in the provided image, it can be seen that the camera is oriented towards the door of said house (previously referred to as property A), which also captures part of the entrance of the previously referred to property B, also owned by the responding party, and captures the mentioned road, where a vehicle and a motorcycle are parked. The responding party indicates that the camera does not record images, being captured live through a mobile application, and that there is no maintenance contract with any security company.

THIRD: On November 2, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: On February 11, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the responding party for the alleged infringement of Article 5.1.c) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified under Article 83.5 of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in the LPACAP, was notified on February 12, 2025, as recorded in the file.

SIXTH: On February 18, 2025, a written statement of allegations from the responding party was received, which, in summary, includes the following considerations:

- It reiterates that the disputed video surveillance camera is oriented towards a private road owned by the responding party, again providing the Simple informative note from the property registry dated September 11, 2023, regarding the property of the responding party. This simple note indicates that it borders to the south with a road and a wall that encloses it; to the north with another road; to the east with a house owned by a third party; and to the west with a threshing floor and property of another third party.

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However, in response to the request from the Spanish Agency for Data Protection, the respondent indicates that it has reoriented the camera located in its residence, additionally adding a privacy mask that, according to the respondent, "hides the adjoining wall, as well as the access to the neighboring residence."

In view of all that has been acted upon, the following are considered proven facts by the Spanish Agency for Data Protection in the present procedure,

PROVEN FACTS

FIRST: That in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data through the installed video surveillance system, with a camera that captures live images via a mobile application, in the residence of the respondent located at

***ADDRESS.1. The respondent carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

SECOND: That the image of the field of view of the disputed camera, provided by the respondent, was oriented towards the exterior part of the door of the respondent's residence, also capturing part of the access path to it.

THIRD: That according to the document certifying the Town Hall of Arteijo, provided by the claimant,

the path that starts from ***STREET.1 provides access to 4 cadastral parcels and is registered in the General Inventory of Goods and Rights of that Town Hall approved on June 30, 2022. One of those 4 parcels coincides with the cadastral reference provided by the claimant for their residence, located at ***ADDRESS.2, and another of the respondent's, at ***ADDRESS.1.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR and as established in Articles 47, 48.1, and 64.3 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Considering the nature of the facts that have led to the proceedings and the concurrent circumstances, the present warning procedure is followed in accordance with the provisions of Article 64.3 of the LOPDGDD.

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The procedure shall have a maximum duration of six months from the date of the initiation agreement. Upon the expiration of this period, it shall lapse, and consequently, the file of proceedings shall be archived, in accordance with the provisions established in Article 64 of the LOPDGDD.

III

Preliminary Issues

The GDPR aims to guarantee the right to the protection of personal data of individuals. Article 4.1) of the GDPR defines "personal data" as: "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

Article 4.2) of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure, or destruction."

Article 4.7) of the GDPR defines the "data controller" or "controller" as: "the natural or legal person, public authority, service, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided by the law of the Union or of the Member States." In turn, Article 4.8) of the GDPR defines the "processor" as the natural or legal person, public authority, service, or other body that processes personal data on behalf of the controller.

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of ensuring the security of individuals and property, as well as their facilities. And Article 5.1 c) of the GDPR provides that personal data shall be: "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

This means that in a specific processing operation, only the relevant personal data that is necessary to fulfill the purpose for which it is processed may be processed.

The processing must be appropriate and proportional to the purpose it aims to achieve. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing carried out on the same.

In accordance with the above, the processing of excessive data must be restricted or these must be deleted. Under no circumstances shall the use of surveillance practices extend beyond the environment subject to the installation and, in particular, shall not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

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The installed cameras may not capture images of third-party private spaces and/or public spaces without a duly accredited justified cause. That is to say, the cameras installed for security purposes may not capture images of public thoroughfares unless it is essential for that purpose, or it is impossible to avoid it due to their location. In such an extraordinary case, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities. In this case, the responsible party is obliged to display visible informational signs that provide the information required in Article 22.4 of the LOPDGDD.

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, carried out by A.A.A., in its capacity as the data controller, in accordance with Article 4.7 of the GDPR, as it determines the purposes and means of the installed video surveillance system, the capture of images by the disputed camera.

IV

Response to Allegations

The responding party has acknowledged the installation of the disputed camera and that it is oriented towards a path, although it reiterates that said path is the property of the responding party, again providing a simple informative note from the Property Registry of Arteixo. This simple note indicates that the property owned by the responding party borders to the south with a path and wall that encloses it; to the north with another path; to the east with a house owned by a third party; and to the west with a threshing floor and property of another third party.

In this regard, this Agency reiterates that the path registered in the General Inventory of Goods and Rights of the City Council of Arteixo, according to the supporting document from said City Council provided by the claiming party, provides access to 4 cadastral parcels, 2 of which are the properties of the responding party and the claiming party. And from the documentation submitted to the file, it is evidenced that the responding party installed a camera that excessively captured part of said path. Although in the allegations presented by the responding party to the initiation agreement of this procedure it is indicated that it has proceeded to reorient the disputed camera, providing an image with the new field of vision, in which that excessive capture is no longer observed, having also added a privacy mask, this does not prevent that a breach of data protection regulations occurred previously.

V

Obligations Regarding Video Surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Individuals or legal entities, public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their facilities. It must be assessed whether the intended purpose can be achieved in another less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR:

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“Personal data should only be processed if the purpose of the processing cannot be reasonably achieved by other means.”

2.- The images obtained cannot be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The processing of images through the installation of camera systems or video cameras must be lawful and comply with the principle of proportionality and the principle of data minimization, as previously indicated.

4.- The images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

5.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April

4. The Spanish Agency for Data Protection provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section “Reports and resolutions” / “regulations”),
 - the Guide on the use of video cameras for security and other purposes,
 - the Guide for compliance with the duty to inform (both available in the “Guides and tools” section).
- It is also of interest, in the case of carrying out low-risk data processing, the free tool Facilita (in the “Guides and tools” section), which, through specific questions, allows assessing the situation of the data controller regarding the personal data processing it carries out, and if applicable, generating various documents, informative and contractual clauses, as well as an annex with indicative minimum security measures.

VI

Unfulfilled obligation. Data minimization

Letter c) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...) c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');"

In this case, from the documentation provided in the file, it is noted that a camera was installed at the top of the facade of the residence of the respondent, which captures excessive footage, specifically of the public road on which the aforementioned residence is located, as observed in the image provided by the respondent.

Consequently, it is considered that the known facts constitute an infringement, attributable to A.A.A., for violation of the previously transcribed article, and all this without prejudice to the fact that, after the opening of this warning procedure, the respondent has reoriented the camera located at the residence at C/ Jorge Juan, 6, adding, moreover, a privacy mask, so that its capture of the aforementioned public road is the minimum necessary to preserve the safety of persons and property, as well as the facilities of the respondent.

VII

Qualification of the infringement of Article 5.1.c) of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following articles, which will be sanctioned, according to paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

“Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the sole purposes of the prescription period, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and will prescribe in three years:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

VIII

Warning

In the event of an infringement of the provisions of the GDPR, among the corrective powers of the Spanish Agency for Data Protection, as the supervisory authority, Article 58.2 of said Regulation provides the following:

"b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation;."

Article 64.3 of the LOPDGDD establishes that the AEPD, after hearing the controller or processor, may issue a warning.

In this case, given the nature of the facts and circumstances presented in the preceding Legal Grounds, it is deemed appropriate to issue a warning to A.A.A. for the infringement of the aforementioned article.

Therefore, in accordance with the applicable legislation and the above, the Presidency of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO ISSUE A WARNING to A.A.A., with NIF ***NIF.1, for the infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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